

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

**RESPONDENT'S MOTION FOR CONFIDENTIAL TREATMENT
OF PORTIONS OF ITS RESPONSE TO
SAMSUNG ELECTRONICS AMERICA, INC.'S MOTION TO QUASH**

Respondent SM Line Corporation ("SM Line") hereby moves pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) to seek confidential treatment of certain portions of Respondent's Amended Response to Samsung Electronics America, Inc.'s ("SEA") Motion to Quash Notice of Deposition, or in the Alternative for a Protective Order ("Response to Motion to Quash") and Exhibits A and Exhibit B submitted therewith. ("Response").

SM Line's Amended Response references discovery disclosures and responses exchanged between SM Line and SEA. These responses and disclosures have been exchanged between the parties subject to a confidentiality agreement and therefore cannot be disclosed.

For the foregoing reasons, SM Line respectfully requests that:

1. The discovery responses and disclosures referenced in the Response as well as copied of such responses and disclosures that are included in Exhibits A and B to SM Line's Response to the Motion to Quash, be kept confidential.

2. Be allowed to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: January 22, 2024

Respectfully submitted,

/s/Wook Chung

Wook Chung

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Counsel for Respondent

SM Line Corporation

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 22nd day of January 2024, the foregoing document was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

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